

REPUBLIC OF THE PHILIPPINES
SENATE
IMPEACHMENT COURT

IN THE MATTER OF:

IMPEACHMENT TRIAL OF
VICE PRESIDENT
SARA ZIMMERMAN DUTERTE

CASE NO. 004-2026

MANIFESTATION

(Re: Sequence of Evidence Presentation)

The Panel of Prosecutors respectfully submits this *Manifestation* on the proposed sequencing of the presentation of evidence, particularly whether the parties should alternately present their respective evidence on each Article of Impeachment before proceeding to the next:

1. First, the Prosecution recognizes that the determination of the manner and sequence of trial proceedings belongs exclusively to the Senate sitting as an Impeachment Court. Article XI, Section 3(6) of the Constitution expressly provides that “[t]he Senate shall have the sole power to try and decide all cases of impeachment,” while Section 3(8) further vests in Congress the authority to promulgate its rules on impeachment “to effectively carry out the purpose of this section.” These constitutional provisions necessarily encompass the authority to regulate the orderly presentation of evidence and to adopt such procedures as the Impeachment Court may deem conducive to the fair, efficient, and expeditious disposition of the proceedings. Thus, whether the Impeachment Court elects to proceed article-by-article or to adopt another sequencing of evidence is ultimately a matter committed to its constitutional prerogative in the exercise of its inherent authority to control its own proceedings.

2. Second, the impeachment trial of then Chief Justice Renato Corona likewise demonstrates that no fixed rule governs the sequence of the presentation of evidence in impeachment proceedings. On January 31, 2012, a Senator-Judge proposed that

the Prosecution and the Respondent alternately present evidence on each article of impeachment. The proposal itself reflects that such a procedure is well within the authority of the Impeachment Court to adopt. Although the proposal was not accepted, with the Presiding Officer ruling instead that the Prosecution should first complete the presentation of its evidence before the Respondent commenced its defense, that ruling merely reflected the Impeachment Court's procedural preference under the circumstances then obtaining, not a mandatory rule governing impeachment trials. Indeed, even under the format ultimately adopted, the presentation of evidence remained flexible. The Prosecution initially presented evidence on Article II (SALN) in January 2012, shifted to Article III (flip-flopping decisions) in early February, later returned to Article II (SALN), and thereafter proceeded to Article VII (TRO in favor of former President Gloria Macapagal-Arroyo) before resting its case on February 28, 2012. Likewise, the defense's presentation was witness-driven rather than article-driven, with witnesses addressing multiple Articles of Impeachment instead of adhering to a rigid article-by-article sequence. The Corona proceedings thus confirm that the sequencing of evidence is a matter committed to the sound discretion of the Impeachment Court.

3. Third, subject to the sound discretion of the Impeachment Court, the Prosecution respectfully manifests its preference for the proposed alternating presentation of evidence by the Prosecution and the Respondent on an article-by-article basis. Such an approach enables the Impeachment Court and the parties to focus on one Article of Impeachment at a time, thereby promoting a more organized and coherent presentation of evidence and facilitating a clearer appreciation of the factual and legal issues unique to each charge. It likewise allows the Respondent an immediate opportunity to address the evidence presented on a particular article before the proceedings move to the next, while enabling the Impeachment Court to receive and evaluate all evidence relating to each charge in a more comprehensive and self-contained manner. In the Prosecution's respectful view, this format may contribute to a more orderly, efficient, and focused trial without prejudice to the Impeachment Court's continuing authority to modify its procedures whenever the interests of justice or the efficient conduct of the proceedings so require.

Quezon City for Pasay City, July 27, 2026.

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